

10. 9:00 AM CASE NUMBER: C25-00578

CASE NAME: DEVON WENGER VS. ROBERT MEADS

***HEARING ON MOTION IN RE: SEAL OR REDACT PORTIONS OF THE COMPLAINT**

FILED BY:

TENTATIVE RULING:

Non-party KK's Motion to Seal and redact portions of the complaint filed on November 18, 2026 is **granted**, in part. No timely opposition was filed with the Court. The Court shall order redaction of the portions of the complaint requested by non-party KK. Counsel for KK shall prepare a proposed order granting the motion as requested no later five (5) court days from the hearing. Said proposed order shall be accompanied by a redacted complaint. The redacted complaint shall replace the complaint filed February 28, 2025. No appearance is required at the hearing on February 25, 2026.

11. 9:00 AM CASE NUMBER: C25-00839

CASE NAME: RANDY ROBBINS VS. LAW OFFICES OF ROBYN DUNLAP

***HEARING ON MOTION IN RE: ATTORNEYS' FEES AND COSTS,**

FILED BY: DUNLAP-KRASZEWSKI, ROBYN

TENTATIVE RULING:

Summary

Defendants Motion for attorney's fees and costs is **granted** as set forth herein.

Background

On October 7, 2025, the Court issued an order after hearing granting Defendants Robyn Dunlap-Kraszewski, sued erroneously as "Robyn Elaine Dunlap (aka 'Robyn Kraszewski')," Law Office of Robyn Dunlap, and Sharon E. Reno ("Defendants") Motion to Strike the complaint pursuant to the anti-SLAPP statute, which was heard on September 3, 2025. There, the Court found that Defendants met their initial burden under Prong 1 of demonstrating the complaint for malicious prosecution arises out of protected activity. When the burden shifted to Plaintiffs, Plaintiffs failed to prove a probability of prevailing by proving with admissible evidence the minimal merit of each essential element of their malicious prosecution claim.

On October 28, 2025, Defendants filed a Motion for Attorney's fees and Costs, seeking \$76,319 in attorney's fees, \$1,866.81 in costs in connection with the Special Motion to Strike, and \$23,133 to reimburse Defendants for the work expended for this Motion. Defendants make this Motion on the grounds that "a prevailing defendant on a special motion to strike shall be entitled to recover his or her attorneys' fees and costs." Cal. Civ. Proc. Code § 425.16(c). A separate motion may be filed to recover those fees and costs. See *Martin v. Inland Empire Utilities Agency*, (2011) 198 Cal. App. 4th 611, 631; see also *Catlin Ins. Co., Inc. v. Danko Meredith Law Firm, Inc.*, (2022) 73 Cal. App. 5th 764, 772–784 (discussing fees recovery options and timing issues).

Plaintiffs Randy Robbins and Sasha Jolley ("Plaintiffs") were required to file and serve any opposition to the Motion for Fees at least nine (9) court days before the scheduled hearing. Cal. Civ. Proc. Code §1005, subd. (b). Nine court days before the hearing is February 10, 2025. Plaintiff did not file a timely opposition to the motion. On February 18, 2026, Defendants filed a Notice of Non-Opposition. In the interim, however, Plaintiffs filed an appeal to the Order Granting Defendants' Special Motion to Strike

on November 20, 2025.

Analyses

1. Defendants' Motion for Attorney's Fees is not Stayed Pending Appeal

Cal. Code of Civ. Proc. § 425.16(c)(1) states:

"Except as provided in paragraph (2), in any action subject to subdivision (b), a prevailing defendant on a special motion to strike **shall be entitled to recover that defendant's attorney's fees and costs**. If the court finds that a special motion to strike is frivolous or is solely intended to cause unnecessary delay, the court shall award costs and reasonable attorney's fees to a plaintiff prevailing on the motion, pursuant to Section 128.5." [Emphasis added]

The first issue before this is Court is whether an unopposed motion for attorney's fees and costs is stayed pending Plaintiff's appeal filed on November 20, 2025.

In addressing this issue, the Court turns to *Dowling v. Zimmerman* (2001) 85 Cal.App.4th 1400, 1406, in which a similar issue was analyzed by the 4th District Court of Appeal. There, the petition presents a question of first impression: Whether a prevailing SLAPP defendant's enforcement of a judgment awarding attorney fees and costs under subdivision (c) of section 425.16 is automatically stayed by the SLAPP plaintiff's perfecting of an appeal from that judgment. The *Dowling* court held that "a SLAPP plaintiff's perfecting of an appeal from a judgment awarding attorney fees and costs to a prevailing SLAPP defendant under subdivision (c) of section 425.16 does not automatically stay enforcement of the judgment."

In arriving at its holding, the *Dowling* court reasoned that section 425.16 was enacted to deter and prevent SLAPP suits. (*Church of Scientology v. Wollersheim* (1996) 42 Cal. App. 4th 628, 636.) The anti-SLAPP statute is California's response to the problems created by meritless lawsuits brought to harass those who have exercised their First Amendment constitutional rights of free speech and petition for the redress of grievances. (*Id.* at p. 644.) The legislative intent to afford the victims of SLAPP suits a swift and effective remedy is clear. "California enacted section 425.16 to provide a procedural remedy to resolve such a suit expeditiously." (*Church of Scientology v. Wollersheim, supra*, at p. 645. The Legislature expressly set forth the intent and purpose underlying the anti-SLAPP statute in subdivision (a) of section 425.16: "The Legislature finds and declares that there has been a disturbing increase in lawsuits brought primarily to chill the valid exercise of the constitutional rights of freedom of speech and petition for the redress of grievances. The Legislature finds and declares that it is in the public interest to encourage continued participation in matters of public significance, and that this participation should not be chilled through abuse of the judicial process. To this end, this section shall be construed broadly."

In deciding the issue presented, the *Dowling* court held that "it must therefore construe the anti-SLAPP statute "broadly" in order to effectuate its purposes and give effect to the Legislature's intent to provide a swift and effective remedy to SLAPP suit defendants. To prevail on a special motion to strike under section 425.16, a SLAPP defendant ordinarily must have competent legal representation,

regardless of whether the defendant is an attorney or whether the defendant initially appears in the action in *propria persona*. The special motion to strike a SLAPP suit provided under section 425.16 is the remedial tool the Legislature gave to victims of such meritless suits. In our view, the purpose of the anti-SLAPP statute will be promoted by construing that statute broadly to permit a pro se SLAPP defendant, who has successfully brought a special motion to strike the offending SLAPP suit with the assistance of specially retained counsel, **to recover mandatory reasonable attorney fees to compensate the retained counsel for the legal services provided.**” *Dowling v. Zimmerman, supra*, 1424-1425.[Emphasis added]

It is true that *Dowling* is distinguishable as it relates to a stay on enforcement of a judgment. This case does not seek a stay on enforcement of a judgment. However, other relevant authorities hold that an “appeal does not stay proceedings on ‘ancillary or collateral matters which do not affect the judgment [or order] on appeal’ even though the proceedings may render the appeal moot.” See *Varian Medical Systems, Inc. v. Delfino* (2005) 35 Cal.4th 180, 191. “A post-judgment or post-order proceeding is also ancillary or collateral to the appeal despite its potential effect on the appeal, if the proceeding could or would have occurred regardless of the outcome of the appeal.” (*Ibid.*) Applied here, Plaintiff’s appeal does not have the effect of staying an award of attorney’s fees since it is ancillary to the merits of the motion, regardless of the outcome of the appeal. To rule otherwise would frustrate the purpose of the Anti-SLAPP legislation and deny the important procedural remedy to Defendants afforded by the statute.

2. Defendants’ Fees and Costs are Reasonable

The Court carefully reviewed the Declaration of Leyla Pasic submitted to support the attorney’s fees incurred. The Court considered the *Lodestar* factors, counsel’s 18 years of extensive trial experience, her discounted hourly rate of \$555.00, and the Laffey Matrix. The Court also carefully considered the fees expended by Mr. B. Douglas Robbin, his 23 years of experience, and his customary hourly rate of \$720.00 per hour. In reviewing the total amount of hours spent (111.2 hours) in preparing the Anti-SLAPP motion, the Court finds that the attorney’s fees in the amount of \$76,319 in preparing for and prosecuting the motion are reasonable.

The Court also finds that the costs in the amount of \$1,866.81 are reasonable, as are the fees expended in preparing this Motion for Attorney’s fees and costs, which total \$23,155. As such, the Court finds that the fees and costs in prosecuting this Anti-SLAPP motion, which total \$101,340.81 are reasonable.

3. Plaintiff Did not Oppose the Motion for Attorney’s Fees

California Rules of Court, Rule 8.54(c) states, “A failure to oppose a motion may be deemed a consent to the granting of the motion.”]; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is “well-within” the court’s discretion to determine that such failure is “tantamount to a concession that its position in the litigation was not substantially justified.”] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United*

Airlines, Inc. (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]; see also *Badie v. Bank of America* (1998) 67 Cal.App.4th 779,784–785 [failure to support a point with reasoned argument and citations to relevant authority constitutes waiver].)

Moreover, a party’s failure to file opposition supports treating the motion as unopposed and may be construed as a concession/abandonment of any argument against the requested relief. See e.g., *Sexton v. Superior Court*, (1997) 58 Cal. App. 4th 1403, 1410, noting local rule providing that failure to timely file opposition “creates an inference that the motion or demurrer is meritorious”); *Herzberg v. County of Plumas*, (2005) 133 Cal. App. 4th 1, 20 (failure to oppose may be construed as abandonment of the issues). Indeed, in this Court, “Failure to comply with the requirements concerning filing and serving opposing and reply papers may, in the discretion of the court, be deemed cause for acting on the matter without consideration of the document filed in violation of requirements and may be deemed cause for imposing sanctions.” See the Court’s website: <https://contracosta.courts.ca.gov/divisions/civil/motions-and-hearings>.

Applied here, the Court finds that Plaintiffs’ failure to timely is deemed to be their consent to the granting of the motion for attorney’s fees and costs.

Ruling

1. Defendant’s Motion for Attorney’s fees and Costs as prevailing Defendants pursuant to Cal. Code of Civ. Proc. § 425.16(c) is granted.
2. Plaintiffs and their attorney, Jonathan Borstein, Bornstein & Bornstein Law Group, shall pay the amount of \$101,340.81 to Defendants no later than thirty (30) days from the date of this hearing.
3. Defendant’s shall prepare and e-file a proposed order conforming to this ruling no later than five (5) days from the date of the hearing, attaching a copy of the tentative ruling.

12. 9:00 AM CASE NUMBER: C25-01017

CASE NAME: STEVEN KENT VS. RICHARD KENT

***HEARING ON MOTION IN RE: TO DISQUALIFY CAROLYN CAIN AS DEFENSE COUNSEL DUE TO HER STATUS AS A WITNESS AND CONFLICT OF INTEREST**

FILED BY: KENT, STEVEN JAMES

TENTATIVE RULING:

This motion was vacated on February 24, 2026, at the request of the Plaintiff. No appearance is required at the hearing on February 25, 2026.

13. 9:00 AM CASE NUMBER: C25-01916

CASE NAME: JODI MURPHY VS. WENDY WONG, MD

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: WONG, WENDY, MD

TENTATIVE RULING:

Before the Court is a demurrer by defendants Wendy Wong, M.D. and Golden State Orthopedics to plaintiff’s complaint. For the reasons set forth, the general demurrers to the second and third cause